

(Undertaking from the Statutory Auditor(s) of the applicant company in respect of the ownership and nationality of the Board of Directors and its significant Shareholders as an option in case the applicant company is not able to furnish requisite documentation)

UNDERTAKING

(An undertaking from the Statutory Auditor(s) of the applicant company in respect of the ownership and nationality of the Directors and its significant Shareholders in compliance with in accordance with PPD, DPE, MoF GOI Order (Public procurement no. 4 vide circular no. F.7/10/2021-PPD (1) dated 23.02.2023.)

We **Name of Audit Firm/Statutory Auditor**are authorized by(Name of Applicant entity).....to give the following declaration on its behalf of

1) List of Director(s):

a) The Details of Director(s) of applicant Entity..... (Name of ENTITY)

Sr no	Name	Nationality	DIN no. as applicable

b) Details of Director(s) of the shareholding companies as per para 13 of abovesaid PPD Order no 4 dt 23.02.2023

Name of the Entity.....

Sr no	Name	Nationality	DIN no. as applicable

2) Share Holding Pattern:

It is hereby declared that the significant shareholder/shareholding of applicant Entity..... (Name of applicant ENTITY)is as mentioned below:

Sr. No.	Details	% of shares
A	Domestic (Indian) shareholding	
B	Foreign Shareholding	
	(i) Shareholding by Countries sharing Land Border with India	
	(ii) Shareholding by Countries not sharing Land Border with India	
	Total A+B(ii)	

Further breakup of Shareholding by Countries not sharing Land Border with India B(ii) above is as follows:

Sr. No.	Details	% of shares
1	Shareholding from countries sharing Land Border with India	
2	Shareholding from countries not sharing Land Border with India	
	Total	

- 3) Note: If more than one company is holding shares as per above mentioned table, a similar shareholding table for that entity must be provided, with this process continuing as necessary

4) Declaration/Undertaking:

It is hereby declared that we have read and understood PPD Order no 4 dt 23.2. 2023 (as amendment from time to time) read with clause 26 of GeM GTC (as amended from time to time) regarding Compliance of Restrictions under Rule 144 (xi) of GFR 2017 which places restrictions on procurement from a bidder of a country which shares a land border with India and it is submitted that the details of the applicant company & other owners and Board of Directors as mentioned in above tables are not covered in any of the clauses given below :

- a) An entity incorporated, established, or registered in a country sharing land border with India; or
- b) A subsidiary of an entity incorporated, established, or registered in a country sharing land border with India; or
- c) An entity substantially controlled through entities incorporated, established, or registered in a country sharing land border with India; or
- d) An entity whose beneficial owner is situated in a country sharing land border with India; or
- e) An Indian (or other) agent or reseller of such an entity; or
- f) A natural person who is a citizen of a country sharing land border with India; or
- g) A consortium or joint venture where any member of the consortium or joint venture falls under any of the above.

In the event of the declaration being found incorrect or misleading, it is understood that the Statutory Auditor (issuer of letter)**[Name of Audit Firm/Statutory Auditor]**..... and Entity (on whose behalf this letter is issued)**[Name of Applicant entity]**..... are liable for appropriate legal action which may include but not be limited to being blacklisted / De-registered / debarred /banned/immediate termination for doing business on GeM.

For [Name of Audit Firm/Statutory Auditor]

[Signature]

[Name of the Statutory Auditor]

[Designation]

[Membership Number]

[Contact Information]

[UDIN Number]

[Seal]